

Smt. Ambika Sahu vs Virendra Sahu on 16 February, 2023

Author: Maninder S. Bhatti

Bench: Maninder S. Bhatti

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE MANINDER S. BHATTI
ON THE 16th OF FEBRUARY, 2023
MISC. CIVIL CASE No. 1839 of 2022

BETWEEN: -

SMT. AMBIKA SAHU W/O MR. VIRENDRA SAHU, AGED
ABOUT 33 YEARS, OCCUPATION: HOUSEWIFE D/O
FATEH SINGH SAHU R/O MUSALMANI
MOHALLA, DHAUKHEDA ROAD BAREIL THANA AND
TEHSIL BARELI DISTRICT RAISEN (MADHYA PRADESH)

(BY SHRI R.K. PATEL - ADVOCATE)

AND

VIRENDRA SAHU S/O SHRI LAXMAN PRASAD SAHU,
AGED ABOUT 39 YEARS, R/O JAWAHAR WARD,
GADARWARA DISTRICT NARSINGHPUR, (MADHYA
PRADESH)

(BY SHRI P.K. SAHU - ADVOCATE)

This application coming on for admission this day, the
following:

ORDER

This is a petition filed under Section 24 of C.P.C. seeking transfer of Case No. RCSHM No. 41/2022 (Virendra Sahu vs. Smt. Ambika Sahu) pending in the Court of III Additional District Judge, Narsinghpur, District- Narsinghpur to the Court of Additional District Judge, Bareli, District-Raisen.

2. The counsel for the applicant contends that the respondent/husband has moved a petition under Section 9 of Hindu Marriage Act, 1955 for Restitution of Conjugal Rights in the Court of III Additional District Judge, Narsinghpur. As the applicant/wife is resident of Bareli, District-Raisen, the appearance of the applicant in the Court of Narsinghpur would cause inconvenience as well as hardship to the applicant inasmuch as, the distance between Narsinghpur and District Raisen is approximately 90 kms. It is contended by the counsel for the applicant that the applicant has to look

after her daughter aged about 10 months and she has already filed a complaint under Section 12 of Protection of Women from Domestic Violence Act, 2005 as well as an application under Section 125 of Cr.P.C. in the Court of Bareilly, District- Raebareilly. Therefore, it would be conducive and proper to transfer the case filed under Section 9 of Hindu Marriage Act, 1955 by the respondent/husband to the Court of Bareilly, District-Raebareilly.

3. Per contra, learned counsel for the respondent submits that in the present case, when the respondent/husband filed an application under Section 9 of Hindu Marriage Act, 1955 on 28.03.2022, then on 09.07.2022, an application under Section 12 of Protection of Women from Domestic Violence Act, 2005 was moved by the present applicant/wife against the respondent/husband and his all family members. The applicant has also filed an application under Section 125 of Cr.P.C. on the same day i.e. 09.07.2022 and therefore, the filing of the aforesaid applications were an after thought and the said applications were moved in order to harass the respondent/husband. Therefore, as the petition under Section 9 of the Hindu Marriage Act, 1955 for Restitution of Conjugal Rights was prior in time, thus, in view of the law laid down by the Apex Court in the case of Balvir Singh Gurjar @ Rinku vs. Nitu reported in (2015) 4 MPLJ 184 submits that the application filed by the applicant/wife deserves to be dismissed.

4. Having heard the rival submissions of both the parties and perused the record.

5. In the present case, undisputedly the respondent/husband has filed an application under Section 9 for Restitution of Conjugal Rights on 28.03.2022. Thereafter, the applicant/wife filed an application under Section 12 of Protection of Women from Domestic Violence Act, 2005 on 09.07.2022 and on the same day i.e. 09.07.2022 also filed an application under Section 125 of Cr.P.C. Therefore, the respondent/husband filed an application under Section 9 of Hindu Marriage Act, 1955 prior to filing of the cases under Section 12 of Protection of Women from Domestic Violence Act, 2005 as well as Section 125 of Cr.P.C by the respondent/wife.

6. This Court in the case of Balvir Singh Gurjar @ Rinku (supra) considered the scope of Section 21-A of the Hindu Marriage Act, 1955 and concluded in paragraph 9 has held as under :-

"9. In view of aforesaid legal position, it can be safely concluded that the point involved in this matter is no more res integra. Section 21-A covers the cases filed under Section 9 of the Act. Thus, by operation of Section 21 of the Act, the subsequent petition must be transferred."

7. Therefore, this Court has held that a case which is filed under Section 9 of Hindu Marriage Act, 1955 is also covered by Section 21-A of the Hindu Marriage Act, 1955 and accordingly, the subsequent petition is liable to be transferred.

8. In the present case, the respondent/husband has undisputedly filed an application under Section 9 of Hindu Marriage Act for Restitution of Conjugal Rights prior to the complaint cases filed by the respondent/wife.

9. Therefore, in view of the distance between the District-Narsinghpur and Tehsil Bareli District-Raisen i.e. approximately 90 kms, this Court is not inclined to transfer the RCSHM No.41/2022 which is pending in the Court of III Additional District Judge Narsinghpur.

10. Accordingly, the present petition deserves to be and accordingly dismissed.

C.c as per rules.

(MANINDER S. BHATTI) JUDGE sp